Statement

Sensitive

Statement in the matter of R v Vida Reid

Name	Jerusha Jetoh
Occupation	Full Time Carer
Address	Known to National Disability Insurance Scheme (NDIS)
Date	13 October 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Jerusha Jetoh and I am 30 years old.

3. My husband Monbo Steven Jetoh (my husband) and I are the nominee's and carers for our son Levi Jetoh (Levi).

4. From when Levi was born, he was born with a hole in his heart in 2017 and has had multiple heart surgery's.

5. In 2018, there was a business at the hospital who recommended my husband and I seek support from The Block fund and then Levi later met access for the National Disability Insurance Scheme (NDIS).

6. In 2019, my husband and I completed a Verbal Access Request (VAR) for my son Levi who was accepted to the NDIS with a diagnosis of Down Syndrome and given an NDIS number 431092168. Dr Andrew Bullet who is a Cardiologist from Perth Children's Hospital was one of the doctors who diagnosed Levi with Down Syndrome.

Jerusha Jetoh

C. Buckner

7. Levi's first plan was from 14 May 2020 to 22 June 2020, which was to the value of $6,191.20. His current plan is from 20 September 2022 to 20 September 2023 which is to the value of $189,544.11.

8. My understanding of the NDIS is to provide funding to pay for services in assisting Levi with everyday living and supports with his disabilities. Some of these supports include Oxygen High Flow Machines, a nurse, Support Co-ordination and therapy, dietary, physiotherapy, continence and several other supports needed.

9. In late 2020, Serge Belardo (Serge) who worked at Surgical House which is a company who supplies items for Levi's medical supply's and equipment, referred me to a company called Forward Focused Group (FFG). In this conversation Serge highly recommended FFG who was run by a lady called Vida. He said she spoke several languages, she had travelled around, she worked with NDIS before, and she could help provide services to support us in raising Levi. He asked me if he could give Vida my mobile number, I said yes.

10. A few days later I received a call from Vida and we had a discussion about Levi's NDIS plan. Vida began the conversation on what her business could provide and the supports for Levi. She said "I worked for the NDIS and I know how the system works" and she said she had a child with a disability and she was at court for her childs care plan. She explained what a Support Co-Ordinator would provide which was to find us services for Levi. I then told her this sounds lovely can we arrange a meeting I will discuss this with my husband and we can arrange to meet when he is here.

11. After I spoke to Vida on the phone, I spoke with my husband and told him about the meeting which was arranged to meet with Vida from FFG.

12. To the best of my memory my husband and I met with Vida and another person called Chloe at our home. Vida explained to my husband and I about the services she could arrange including Respite for Levi. In this meeting my husband spoke to Vida and Chloe and I saw him electronically sign a Service Agreement for Levi with FFG on Vida's computer. Chloe did not say much at this meeting Vida told my husband and I that she was in training. I later found out that Chloe was assigned as

a Support Co-ordinator to a friend of mine's daughter.

13. About two weeks after the meeting with Vida, I received a call from a support worker who I remember as being Chloe's mum who was called Leih. From the beginning she would come twice a week for a few weeks and then I told her it was too much as I kept the house clean and there was not much for her to do. I told her that once per week would be enough, when she did come she never came more than two hours at a time and she never came more than twice a week.

14. We were having problems with Levi's school, we explained our concerns to Vida. She told us she would be able to help and tell the school that they needed to follow their obligations and not discriminate against my son.

15. On 9 September 2021, my husband told me he was contacted via phone by Candice who works for NDIS at Wesley. He put the call on speaker, and she told us that the Levi's new plan had been approved and explained that it showed that there was approximately $56,000 blocked out already by a provider called Provider Choice. Candice sent an email to me showing us that funds that had been blocked out on the 7 September 2021. I have emails shows discussions between Candice and Terri at FFG.

ANNEXURE: I NOW PRODUCE A COPY: JJ001 OF THE EMAILS BETWEEN CANDICE AND TERRI AT FFG SHOWING DISCUSSIONS REGARDING THE $56,000 BLOCKED OUT OF LEVI'S NEW PLAN.

16. In September 2021 my husband and I went to the FFG office in Armadale where we met with Vida and 2 other team members. I saw my husband asked Vida why they were charging us for things we do not have. Vida told us that it was an error made by a staff member. I saw my husband then asked how his signature got onto documentation that he didn't sign, and Vida said Terri uses her computer as well. Moving forward my husband said he wanted to be told about every single charge

made and cc'd into all emails. There was a copy of the new agreement on the table which we took home without signing.

17. In September 2021, after my husband discovered his signature was copied without his knowledge, into another Service Agreement for a provider we did not know. We decided we were not happy with the lack of services and quality of services being provided by FFG and decided to cancel the agreement with them.

18. On 13 October 2022, Christine Bruckner (Investigator Bruckner) an investigator from the NDIS contacted me to ask about Levi's claims for the NDIS. We had a brief conversation over the phone about these claims.

19. Later that day on 13 October 2022, Investigator Bruckner, my husband and I met in person and she showed us a list of claims which were submitted by FFG. I was able to see on the list, a claim for 'Counselling', I can confirm my husband, son and I have never received these services from FFG. I was also able to see a claim for 'Delivery Of Health Supports By A Registered Nurse - Weekday Daytime' for the 25 May 2021 to 26 May 2021 for 11.98 hours. I can confirm Levi did not receive any of these services as after the 16 May 2021 we did not have a nurse come to the home again from FFG.

20. My husband and I were told that if we wanted to continue supports with FFG, we were required to sign a Service Agreement for a company called The Hive or Behive. I never signed a service agreement with The Hive or Behive, Levi never received any services from them, and I never gave them permission to claim from Levi's NDIS plan.

Jerusha Jetoh

.....
Signed

.....
C. Bruckner
Witness

21. This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Signature _____
Jerusha Jetoh

Statement taken and signature witnessed by me about 1:15pm on 13 October 2022 at an address in Perth in Western Australia.

Signature _____
Christine Bruckner – Fraud Investigator
Perth Western Australia

.....
.....

Begin forwarded message:

JJ001 1of6

From: Terri R <terri.r@ffg.net.au>
Date: 9 Sept 2021 at 3:43 pm
To: Wunderlich, Candice <candice.wunderlich@ndis.gov.au>, Jerusha Jetoh <jerushashafar@gmail.com>, Monbo Jetoh <stevenjetoh@yahoo.com.au>
Subject: RE: Levi Jetoh Plan Approval [SEC=OFFICIAL]

Hi Candice,

Why would I be contacting plan partners? How can they allocate this as the plan manager is access foundation. I will call the NDIS now to have this service booking taken off as this has not been discuss or signed off on. Us at FFG are not sure either why this service booking has been made. I will update everyone once I have given them a call.



Terri R
Support Coordination Service Manager at Forward Focused Group

A 2/210 Jull street, Armadale, WA 6112
[Next to Dome Cafe]
P 08-61177786 **M** 0478886282
E terri.r@ffg.net.au
W https://forwardfocusedgroup.com.au

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FORWARD FOCUSED
YOU ARE OUR FOCUS

Registered NDIS Provider

From: Wunderlich, Candice <Candice.Wunderlich@ndis.gov.au>
Sent: Thursday, 9 September 2021 3:22 PM
To: Terri R <terri.r@ffg.net.au>; Jerusha Jetoh <jerushashafar@gmail.com>; Monbo Jetoh <stevenjetoh@yahoo.com.au>
Subject: RE: Levi Jetoh Plan Approval [SEC=OFFICIAL]

Hi Terri,

It definitely is concerning as I have only sent out the plan today to you and the family so I am unsure how this booking has been placed. It looks like they have added themselves as a contact on the 07/09/2021 and that was when the service booking was made. Have you spoken to Vida and Chloe as they were also enquiring about Levi's Plan.

You will need to contact Plan Partners on 1300 776 246and ask who authorised the booking, as we are unable to see who has created it authorised, only NDIS have access to this.

Kind Regards,

Candice Wunderlich
Senior ECEI Practitioner
North Metro
Wanneroo Office: 23 Dundebar Road, Wanneroo, W.A. 6065
National Disability Insurance Scheme partner delivering Early Childhood Early Intervention
T: 1300 969 645 E: Candice.Wunderlich@ndis.gov.au
Hours: Monday to Friday, 7:30 a.m. - 3:30 p.m.

Please note:
My role involves frequent family meetings and I will endeavour to respond to your email in two business days.

ndis Wanslea
Delivering the NDIS in your Community

The NDIA acknowledges the Traditional Custodians of Country throughout Australia and their continuing connection to land, sea and community.
We pay our respects to them and their cultures and to Elders past, present and emerging.

From: Terri R <terri.r@ffg.net.au>
Sent: Thursday, 9 September 2021 3:00 PM
To: Wunderlich, Candice <Candice.Wunderlich@ndis.gov.au>; Jerusha Jetoh <jerushashafar@gmail.com>; Monbo

Jetoh <stevenjetoh@yahoo.com.au>
Subject: RE: Levi Jetoh Plan Approval [SEC=OFFICIAL]

Hi Candice,

Thank you for sending a detail email below regarding the hours funded and approved by the NDIS.

Regarding the provider choice comment of a service agreement being locked in. Levi is not commenced with Provider Choice and neither has he been commenced.
The appointed provider for plan management is Access Foundation. The below information is extremely concerning if a service booking has already been created for services not advised to Jerusha or Steven. Are you able to investigate this service booking as the plan has not been sent to any providers for supports as we have only just received the plan? Can you please advise asap, as again this is very concerning due to no knowledge of this service booking taken place with a provider Levi is not even commenced with.

Your assistance is appreciated in this urgent matter,



Terri R
Support Coordination Service
Manager at Forward Focused Group
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W https://forwardfocusedgroup.com.au

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FORWARD FOCUSED
YOU ARE OUR FOCUS

Registered NDIS Provider

From: Wunderlich, Candice <Candice.Wunderlich@ndis.gov.au>
Sent: Thursday, 9 September 2021 11:50 AM
To: Jerusha Jetoh <jerushashafar@gmail.com>; Monbo Jetoh <stevenjetoh@yahoo.com.au>
Cc: Terri R <terri.r@ffg.net.au>
Subject: Levi Jetoh Plan Approval [SEC=OFFICIAL]

Hi Jerusha and Steven,

Please see attached a copy of Levi's approved NDIS plan.

Below is a breakdown for what is included in the plan:

Core Supports;

Consumables (Plan – Managed) Total Amount $89,536.86:

- Nasogastric supports – Approved $32,509.97
- Funding for assistive technology – Approved $1,210.00 – you can purchase communication and visual supports, such as picture symbols, low technology communication books and boards, as well as emotional recognition cards and social stories. Included is also 3 x mattress protectors, purchase for supportive orthopaedic shoes, sleep supports, and adaptive bowls and cutlery.
- Funding for Hearing Australia registration fee - $100.00
- Flexible Repairs and Maintenance - $800.00 – this is allocated to support minor repairs for the suction machine, specialised highchair and shower bench.
- Nursing/Support Worker – Approved $54,426.86 – this is to support the use of a support worker 4 hours per day for a period of 3 months, and then 2 hours at 5 days for the remaining 9 months – however this budget is flexible, please ensure to budget correctly. Included also is 8 days per the year for respite so that Jerusha and Steven can get some rest days. Support work can be used flexibly at home and in the community, for example for assistance with Levi's personal care tasks at home and day-care or assistance to drive to and attend medical appointments with the family for example. It is not expected the support workers would do any gardening and cleaning as these tasks are not typically expected of a child Levi's age. Additionally, I have seen that the Provider Choice has already allocated a booking of funds for $29,845.86 under assistance with Social and community participation. **Can you please liaise with the provider to cancel this booking and allocate under Assistance with Daily Life instead?** Typically, the Social and community participation budget is used for swimming supports, sporting activities for older children and adults and the Assistance with Daily Life budget is used for support work assistance and gaining support to build capacity for the child and family to encourage community participation. Provider Choice can call the NDIA for further support with this on 1800 800 110.

Capacity Building;

Improved Life Choices;

- Plan Management – Approved Total $1,485.75

Improved Daily Living;

- Therapy Supports - $40,239.11 – inclusive of nursing assessment and 36 hours of assessment for a continence assessment, ankle foot orthoses assessment, specialised bed, specialised stroller, specialised car seat and specialised activity chair – each of these require an AT Application and quote to be sent through to the NDIA once trailed to add the funds to the budget.

Improved Health and Wellbeing;

- Nutritional support, consultation and assessment – 13 hours = Approved $2,521.87

Support Coordination;

- Approved 36 hours at Level 2 = $3,605.04

Assistive Technology;

- 2 x Pair of Bilateral Foot Orthoses - $5,000.00
- Rental and hire $850.00 for trial of specialised bed system and mattress, specialised stroller, activity chair and car seat.

I also wanted to include the supports requested which were not included in the plan and the rationale for why. I have also outlined some alternative options for yourself and your providers to consider. See below:

Requested supports: Support Coordination – Level 2 x 72 Hours

Rationale/Evidence: Supports have been reduced as the family are already linked in with providers whom are stable and have been with Levi since he was 2 years of age. There is acknowledgment for the need for support coordination and this has been added in the budget however to cater for 3 hours per month which is considered adequate support.

Requested supports: Support Coordination – Counselling Support x 26 hours
Rationale/Evidence: This support is relating to the needs of Levi's parents specifically and not Levi's current disability. It is recommended that Jerusha and Steven can utilise supports provided in the attached document to support their mental wellbeing. In addition, utilising nursing supports, support work and respite in the current plan will allow for you both to get time to rest, access supports and recuperate.

Requested Support: Assistance with daily life – 8 hours per week for cleaning support.
Rationale/Evidence: Supports have not been included as although it is acknowledged that you as a family are struggling mentally and at carers burnout, cleaning the home is not directly related to Levi's disability and it is not an expected day to day living activity in which Levi would participate in. It is anticipated that with the support provided for Levi that the need for a cleaner will be reduced as Jerusha and Steven will have time for rest and to complete these tasks. Although cleaning and gardening cannot be provided in Levi's NDIS plan, you are encouraged to enquire with Carer's Gateway to see if you qualify for a 12 month carers plan to assist with these tasks and more.

Requested Support: Travel Support to and from medical appointments.
Rationale/Evidence: This support is typically not funded in early childhood plans as it is parental responsibility to support a child to attend appointments in the community. The support worker budget included in this plan can be utilised to take Levi to appointments with the family.

Requested support: Swimming 1:1 Support at 50 Hours ($50 a lesson).
Rationale/Evidence: Currently NDIS has changed their policy for approving swimming supports, this includes survival swimming (see - Swimming lessons in early childhood | NDIS and Social and recreation support | NDIS . It is expected that the parent would provide swimming supports to a child that is under the age of 3 years. Other options for support with swimming lessons include using your Capacity Building hours to have hydrotherapy sessions with a Physiotherapist or having your Occupational Therapist, Speech Pathologist or Therapy Assistant to come to the swimming school to assist swimming staff, yourself and Levi during the lessons.

Requested support: Continence Products – Nappies x 5 a day.
Rationale/Evidence: Levi does not currently meet the criteria for funding of continence products as he is not yet 5 years of ages, as well as he does not use a larger excessive amount of nappies than a typical child at this age, as well as not relating directly to his disability. Please see link for further information and NDIS guidelines around this - Early childhood continence consumables | NDIS You can use your capacity building funding to receive support for Levi developing independence in toileting.

Requested supports: 15 Hours of Continence Assessment Support.
Rationale/Evidence: Levi is currently not utilising a high amount of nappies for his age, and 3 hours have been added in Capacity Building supports to assess this which is sufficient considering his age and lower use of nappies.

Requested Support: Low Cost AT – Personal Safety – Lock for the gate.
Rationale/Evidence: This support is at a very minimal cost of around $10 - $20 – it is expected that this support be funded by the family as it comes under parental responsibility. At this point in time, there is not enough evidence that it is necessary to purchase locks as the reports provided outline absconding is a new behaviour of concern (has occurred on two occasions so far). It would be expected that your provider of choice would first support you with ways to stop the behaviour of absconding before purchasing locks.

Requested Support: Therapy supports have requested that a Z-Vibe and Chew Tube be funded.
Rationale/Evidence: This is acknowledged as a sensory item in which is not funded by NDIS – see Sensory equipment | NDIS – these are seen to be day to day cost for the parents in which are not funded by NDIS. You can use your Capacity Building budget to work with your Occupational Therapist to find alternative options for meeting Levis' sensory needs.

Requested supports: Hearing aid replacements
Rationale/Evidence: This support is now obtained through Hearing Australia and not funded through NDIS.

Please have a look through the plan and budgets and let me know if you have any questions at all as I am here to help.

You may request a review of the decision made by the delegate to include and decline supports within his current plan. The request for an internal review will result in the plan being reviewed by another independent assessor who will reassess the provided information, which may or may not result in the support being included. You can up to 100 days to request this and you current plan is accessible throughout this process, so there is no disadvantage for requesting an internal review. The staff member who works on the internal review will not have been involved in the earlier decision.

You can make a request for internal review of a decision by:

- submitting a written request to:
  Chief Executive Officer
  National Disability Insurance Agency
  GPO Box 700
  Canberra ACT 2601
- sending the form to myself who will action it for you
- calling 1800 800 110
- sending an email to: enquiries@ndis.gov.au

When you ask for a review, explain why you think the decision is not right. Download Application for a review of a decision (PDF 471KB) form. You don't have to use this form but it can help you describe why you want an internal review of the decision.

Kind Regards,

Candice Wunderlich
Senior ECEI Practitioner
North Metro
Wanneroo Office: 23 Dundebar Road, Wanneroo, W.A. 6065
National Disability Insurance Scheme partner delivering Early Childhood Early Intervention
T: 1300 969 645 E: Candice.Wunderlich@ndis.gov.au
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Delivering the NDIS in your Community

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